

ELECTION RELATED OFFENCES - 2026

BHARATIYA NYAYA SANHITA 2023

SL. No.	OFFENCES	SECTION OF LAW	COGNIZABLE / NONCOGNIZABLE	COMPLAINT BY / REMARKS
1	Impersonation in Election	172 r/w 174 BNS 319(2) BNS	Cognizable-Bailable	Presiding Officer.
	Attempt to impersonation in Election	174 BNS 319(2) r/w 62 BNS	Cognizable-Bailable	Presiding Officer.
	Undue influence at an election	174 BNS	Non - Cognizable Bailable	With permission of JM - By presiding Officer
	1.Inducing Election boycott and not to vote in polling	171(1) r/w 174 BNS	Non-Cognizable Bailable	With permission of JM — On complaint
	2. Threaten candidate or Voter	171(2)(a) r/w 174 BNS		
	3. Induces voter of divine pleasure	171(2)(b) r/w 174 BNS		
2	Bribery	173 BNS	Non-Cognizable Bailable	With permission of JM — on complaint
3	False statements regarding character and Conduct.	175 BNS	--do--	--do--
4	Illegal payments for petrol, meeting, circulating pamphlets and advertising a candidate without candidates written Authority	176 BNS	--do--	--do—
5	Disobedience of Order duly promulgated by Public Servant (Sec.30(2) police act or Code of conduct promulgated by Election Commission)	1. If annoyance or obstruction 223(a) BNS	Cognizable Bailable	Only on private complaint by the person who promulgated Order directly to the Court
		2. If riot etc.. 223 (b) BNS		
6	Wantonly giving provocation with intent to cause riot	192 BNS	Cognizable Bailable	On complaint
7	Promoting enmity between different class	196(1) BNS	Cognizable Non-Bailable	On complaint
8	Impersonation like a public servant	204 BNS	Cognizable Non-Bailable	On complaint
9	Using crackers and fire works	288 BNS	Cognizable Bailable	On complaint
10	Insult intended to provoke breach of peace	352 BNS	Non-Cognizable Bailable	On complaint with other cognizable offences
11	False statement, rumor etc with intent to cause public to commit offence against state or public tranquility.	353(1)(b) BNS	Non-Cognizable Non-Bailable	On complaint with other cognizable offences
12	The above with intent to incite persons to commit any offence against any class or community	353(1)(c) BNS	Non-Cognizable Non - Bailable	On complaint with other cognizable offences

13	Statements, reports, news creating or promoting enmity or ill will between classes.	353(2) BNS	Cognizable Non-Bailable	On Complaint
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** Other Penal provisions of BNS also can be invoked according to the facts of the cases.*

T.N. OPEN PLACES (PREVENTION OF DISFIGUREMENT) ACT 1959**(As per Sec.8 – All the offences under this act are cognizable offences)**

SL. No.	OFFENCES	SECTION OF LAW	COGNIZABLE / NONCOGNIZABLE	COMPLAINT BY / REMARKS
1	Affixes to, or inscribes or exhibits on, any place open to public view any objectionable advertisement.	Sec.3 (Abettors Sec.5)	Cognizable Bailable	Any officer authorized by state Govt./ Election Commn. or Suo moto.
2	Unauthorized advertisement without permission obstructs Vision of driver or distracts the attention of pedestrian endangers public safety	Sec. 3-A (Abettors Sec.5)	--do--	--do--
3	Affix or inscribes or exhibits in public view any advertisement without consent of owner or occupier (Wall Advertisements)	Sec. 4(1) (Abettors Sec.5)	Cognizable Bailable	Owner or Occupier
4	Affix to, or inscribe or exhibit any place open to public view, any poster or any effigy or any bill, Notice, or other thing. (All Wall Advertisements)	Sec. 4-A(1)(a) r/w 4B (Abettors Sec.5)	--do--	Any officer authorized by state Govt./ Election Commission or Suo moto
5	Put-up or fix any thatti board or board supported on, or attached to any post, Pole, standard, framework or other support wholly or in part upon or over any land, building, wall or structure (Flex Advt.)	Sec.4-A(1)(b) r/w 4B (Abettors Sec.5)	---do---	---do--
6	Affix to or inscribe or exhibit on any motor vehicle, any poster or any bill notice, documents, paper, Effigy or other thing containing any words, signs or visible representations.(Advt. in Vehicle)	Sec.4-AA(1)(a) r/w 4AA(4) (Abettors Sec.5)	Cognizable Bailable	----do---
7	Put up or fix any thatti board or board supported on or attached to any post, pole standard, framework or other support wholly or in any part upon or over any motor vehicle (Flex in Vehicle)	Sec.4-AA(1)(b) r/w 4AA(4) (Abettors Sec.5)	---do--	---do---

REPRESENTATION OF THE PEOPLE ACT- 1951

SL. No.	OFFENCES	SECTION OF LAW	COGNIZABLE / NONCOGNIZABLE	COMPLAINT BY / REMARKS
1	Promoting enmity between different classes in connection with elections	Sec.125 (also 192, 196(1), 352, 353(1)(b) & (1)(c) BNS)	Cognizable	On complaint
2	Filing false affidavit, information etc., during nomination	Sec. 125A	Non-Cognizable	On private complaint to JM
3	Conduct of public meetings, displaying election matter via TV, or holding musical concerts within 48 hours ending with poll conclusion	Sec.126(2) (also 192, 196(1), 352, 353(1)(b) & (1)(c) BNS)	Non-Cognizable	With permission of JM, FIR by SHO or on complaint
4	Creating disturbance in an election meeting held after obtaining due permission acts or incites others to act in a disorderly manner.	Sec.127(1)	Cognizable	On complaint of chairman of the meeting or by SHO
5	Printing/publishing pamphlets, posters, or placards without the name and address of the printer and publisher	Sec. 127A RPA 1951	Non-Cognizable	With permission of JM, FIR by SHO or on complaint
6	Failure to maintain secrecy at polling stations or counting centers, by Govt. servant on duty	Sec.128(2)	Non-Cognizable	With permission of JM, Complaint of Returning Officer or SHO
7	Officers on Election duty and polling Officers on election duty - act for candidates or influence the Voters	Sec.129(3)	Cognizable	On complaint
8	Canvassing for votes within 100 meters from polling stations or display of posters	Sec.130(2)	Cognizable	On Complaint
9	Disorderly conduct, shout, announcing through mike or megaphone near Polling station with a view to cause disturbance or inconvenience, or annoyance to voter	Sec.131(2) (also 71A, TNCP Act, 3A Town Nuisance Act)	Cognizable can seize materials.	On report of Presiding Officer to police officer in booth
10	Failure to obey lawful order of presiding Officer at polling station, misconduct and creating disturbance.	Sec.132(3) (also 132 BNS)	Cognizable	presiding officer or person authorized by presiding officer
11	Illegal hiring or procuring of conveyance for transporting voters (other than family/agent) to/from polling stations	Sec. 133 RPA 1951	Non-Cognizable	With permission of JM. Complaint by PO or SHO.
12	Taking or attempting to take ballot paper Fraudulently	Sec.135	Cognizable	Presiding Officer.
13	Illegal hiring of conveyance for transporting Voters to polling stations and back	Sec.133	Non-Cognizable	with permission of JM Complaint by presiding Officer or SHO.
14	Going armed with arms within the neighborhood of a polling station on polling day (exempts RO, PO, Police)	Sec. 134B RPA 1951	Cognizable	On complaint
15	Taking or attempting to take ballot paper/EVM out of polling station	Sec. 135(1)	Cognizable	Presiding Officer

16	Offence of Booth capturing	Sec.135A	Cognizable	Presiding Officer
17	Liquor not to be sold given or distributed on polling day or 48 Hrs. prior to election	Sce.135C(2) RP Act 4(1)(a)/(aa)/(aaa) TNP Act	As per RP Act NC - TNP Act Cognizable	Any one
18	Fraudulently defacing/destroying EVM, ballot paper, or official mark; putting foreign objects in ballot box; taping EVM symbols	Sec.136(b)	Cognizable	Presiding Officer

THE NOISE POLLUTION (REGULATION AND CONTROL) RULES 2000 UNDER ENVIRONMENT PROTECTION ACT

Rule 5(1) – A loud speaker or a public address system shall not be used except after obtaining written permission from the authority.

Rule 5(2) – A loud speaker or a public address system shall not be used at night between 10.00 pm to 6.00 am, except in closed premises, conference rooms, community halls and banquet halls.

****Note: All Cone type speakers are prohibited in Tamil Nadu*

THE TAMIL NADU CITY POLICE ACT – 1988

SL. No.	OFFENCES	SECTION OF LAW	COGNIZABLE / NON – COGNIZABLE	COMPLAINT BY / REMARKS
1	Unauthorized use of Amplifiers	71-A	Non-Cognizable	with permission of JM
2	Un authorized use of Amplifiers in vehicles (add Driving dangerously in public road)	71-A TNCP Act & 184 MV Act	Non-Cognizable Cognizable	-do-

THE TAMILNADU TOWN NUISANCE ACT -1889

SL. No.	OFFENCES	SECTION OF LAW	COGNIZABLE / NON – COGNIZABLE	COMPLAINT BY / REMARKS
1	Obstructing thorough fare	3(5)	Fine Rs.50 or 8 days imprisonment	Suo-moto/ petty case
2	Un authorized use of Amplifiers	3-A	Fine Rs.500/- or 3 months imprisonment	Suo-moto / Inspector can seize

THE T.N PROPERTY(PREVENTION OF DAMAGES AND LOSS) ACT-1992

SL. No.	OFFENCES	SECTION OF LAW	COGNIZABLE / NON- COGNIZABLE	COMPLAINT BY / REMARKS
1	Commits mischief by doing any act to any property and causing damage to the amount of Rs.100/-	Sec.3	Cognizable Non-Bailable Sessions Offence	Complaint by anybody
2	Causing damage to property by fire or explosive substance	Sec.4	Cognizable Non-Bailable Sessions Offence	Complaint by anybody
3	Throwing stones, bricks etc upon persons travelling in motor vehicles	Sec.5	Cognizable Non-Bailable Sessions Offence	Complaint by anybody

SCHEDULED CASTE AND SCHEDULED TRIBE (PREVENTION OF ATROCITIES) ACT-1989

Sl. No.	OFFENCES	SECTION OF LAW	COGNIZABLE / NON – COGNIZABLE	COMPLAINT BY / REMARKS
1	Forces or intimidates or prevents a member of a Scheduled Caste or a Scheduled Tribe 1. Not to vote or to vote for a particular candidate or to vote in a manner other than that provided by law; 2. Not to file a nomination as a candidate or to withdraw such nomination; or 3. Not to propose or second the nomination of a member of a SC/ST as a candidate in election	Sec. 3(l) (A) Sec.3(l) (B) Sec. 3(l) (B)	Cognizable Non-Bailable Sessions Offence --do-- --do--	On complaint from individual to Police --do-- --do--
2	Forces or intimidates or obstructs a member of a SC/ST, who is a member or a Chair person or a holder of any other office of a Panchayat , from performing their normal duties	Sec.3(m)	--do--	--do--
3	After the poll, causes hurt or grievous hurt or assault or imposes or threatens to impose social or economic boycott upon a member of a SC/ST or prevents from availing benefits of any public service which is due to him	Sec.3(n)	--do--	--do--
4	Commits any offence under this Act against a member of a SC/ST for having voted or not having voted for a particular candidate	Sec.3(o)	--do--	--do--

** If any offences of IPC(now BNS) mentioned in the Schedule of SC/ST Act made out, then add 3(2)(va) of SC/ST Act according to the facts of the case.*

Note: If Property or Cash seized under suspicious circumstances, then register FIR u/s Sec.102 Cr.P.C – Send FIR to Thasildar / Executive Magistrate with request to keep the property under safe custody in Treasury. (If Cash, as per the Directions of the DGP in RC.No.0030/Cr.IV(2)/2009 Dt.17.02.2009, inform Income Tax Department and Enforcement wing also), If any offence made out alter sections according to the nature of Offence, (*either as Bribe to voters or to deal as Stolen money etc.*).

Note: Depending upon the nature of the offences, if other Special Acts made out, then relevant penal provisions of the Special Acts to be added. (Ex. Explosive substances Act, Arms Act, TN Prohibition Act...etc.

THE RELIGIOUS INSTITUTIONS (PREVENTION OF MISUSE) ACT, 1988

SL. No.	OFFENCES	SECTION OF LAW	COGNIZABLE / NON-COGNIZABLE	COMPLAINT BY / REMARKS
1	Use of religious institution premises for the promotion or propagation of any political activity, or for the harbouring of any person accused of an offence.	Sec. 3 Religious Institutions Act	Cognizable / Non-Bailable (BNSS Schedule I)	Police / Flying Squad / Election Observers / General Public. Penalty applied via Sec 7.
2	Prohibition of the use of funds of religious institutions for political activities, or for the direct or indirect benefit of a political party or candidate.	Sec. 5 Religious Institutions Act	Cognizable / Non-Bailable (BNSS Schedule I)	DEO / Police / Expenditure Observer. Penalty up to 5 years imprisonment.
3	Prohibition of using religious fora for propagating political ideas, organizing political demonstrations, or delivering political speeches.	Sec. 6 Religious Institutions Act	Cognizable / Non-Bailable (BNSS Schedule I)	Sector Magistrate / Police / Returning Officer. Penalty up to 5 years imprisonment.
4	Failure of a manager or employee of a religious institution to report the impending contravention of the Act to the local police station.	Sec. 9 Religious Institutions Act	Non-Cognizable	Police. Punishable under Sec 223 BNS (formerly 176 IPC).

THE INDECENT REPRESENTATION OF WOMEN (PROHIBITION) ACT, 1986

SL. No.	OFFENCES	SECTION OF LAW	COGNIZABL E / NON- COGNIZABL E	COMPLAINT BY / REMARKS
1	Publishing, causing to be published, or exhibiting any advertisement (including election posters, banners, and digital ads) containing indecent representation of women.	Sec. 3 IRWA 1986	Cognizable / Bailable (Sec 8)	Suo Moto by Police / Defamed Candidate / Flying Squad. Imprisonment up to 2 years.
2	Producing, selling, letting to hire, distributing, or circulating pamphlets, books, or campaign literature containing indecent representation of women.	Sec. 4 IRWA 1986	Cognizable / Bailable (Sec 8)	Suo Moto by Police / Any Citizen / DEO. Imprisonment up to 2 years (higher for subsequent convictions).
3	Offences committed by companies, political parties, firms, or associations resulting in the indecent representation of women.	Sec. 7 IRWA 1986	Cognizable / Bailable (Sec 8)	Sector Magistrate / Police. Action directed against the head of the organization or designated managers.

THE EMBLEMS AND NAMES (PREVENTION OF IMPROPER USE) ACT, 1950

SL. No.	OFFENCES	SECTION OF LAW	COGNIZABLE / NONCOGNIZABLE	COMPLAINT BY / REMARKS
1	Improper use of specified emblems, names, or pictorial representations (e.g., National Flag, Ashoka Chakra, WHO seal) on private campaign vehicles, letterheads, or propaganda materials without explicit permission.	Sec. 3 Emblems & Names Act	Non-Cognizable / Bailable	Police / DEO. (Requires prior sanction of the Central Government to institute prosecution).
2	Penalty for contravening Section 3 (improper use of emblems or colourable imitations).	Sec. 5 Emblems & Names Act	Non-Cognizable / Bailable	Police. Fine extending up to Rs. 500.

THE PREVENTION OF INSULTS TO NATIONAL HONOUR ACT, 1971

SL. No.	OFFENCES	SECTION OF LAW	COGNIZABLE / NONCOGNIZABLE	COMPLAINT BY / REMARKS
1	Burning, mutilating, defacing, defiling, trampling upon, or showing disrespect to the Indian National Flag or the Constitution of India during protests, rallies, or political demonstrations.	Sec. 2 National Honour Act	Cognizable / Non-Bailable (BNSS Schedule I)	Suo Moto by Police / Any Public Servant. Imprisonment up to 3 years or fine.
2	Intentionally preventing the singing of the Indian National Anthem or causing disturbances to an assembly engaged in such singing.	Sec. 3 National Honour Act	Cognizable / Non-Bailable (BNSS Schedule I)	Police / Presiding Officer / Event Organizer. Imprisonment up to 3 years.